Mala Sharma vs State & Anr on 1 February, 2023

Author: Swarana Kanta Sharma

Bench: Swarana Kanta Sharma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ CRL.M.C. 3661/2019 & CRL.M.A. 39487/2019
MALA SHARMA
Through: Mr. Ankit Dhawan, Mr. Mishra and Mr. Supanth Advocates.

versus

STATE & ANR
Through: Mr. Satish Kumar, APP

CORAM:
HON'BLE MS. JUSTICE SWARANA KANTA SHARMA
ORDER

% 01.02.2023

1. In the instant petition under Section 439(2) read with Section 482 of the Code of Criminal Procedure, 1973 ("Cr.P.C"), the petitioner seeks setting aside / cancellation of bail granted to respondent no. 2 vide order dated 17.01.2019 passed by learned ASJ (South) Saket District Court, New Delhi in SC no. 705/18 in FIR bearing no. 349/2018 registered at Police Station Mehrauli, Delhi for the offences punishable under Sections 304- B/498A/406/420/120-B/201 of Indian Penal Code, 1860 ("IPC").

2. Learned Counsel for petitioner states that bail granted by learned Trial Court vide order dated 17.01.2019 has been granted on erroneous ground. He also states that learned Trial Court had failed to take note of the fact that the respondent no. 2 had conspired with his family members into trapping the innocent girl, harassing and torturing them with dowry demand and thereafter, tried to get rid of her by one means or the other. He also states that the respondent committed fraud upon the deceased by suppressing the fact that the brother of respondent was already married twice before his marriage with the deceased.

3. It is also stated by learned counsel for petitioners that learned Trial Court committed error by not appreciating that on 20.06.2018 when the mother of deceased had spoken to her, she was told by the deceased that she was very upset and that she had been beaten and tortured by family members along with persistent demand of dowry. She had also communicated to her mother that the respondent herein had instigated his brother to kill her and to get rid of her. It is also stated by learned counsel that learned Trial Court did not take into account the fact that the respondent has

received a sum of Rs. 6 lakh in cash from the father of deceased at the time of marriage.

4. The learned APP for the State, on the other hand, states that bail in this case was granted by the learned Trial Court on 17.01.2019 by a reasoned order and the learned Trial Court had taken into account all the facts & circumstances of the case and had discussed the same in detail. It is also argued by learned APP that learned Trial Court committed no error while granting bail to respondent no.2. It is further stated that case is at the stage of framing of charge and charge-sheet in this case was filed in the year 2018.

5. I have heard both the counsels and have perused the material on record.

6. Having considered the overall facts & circumstances of the case along with the settled principles of law with regard to cancellation of bail and the fact that respondent no. 2 was granted regular bail by a detailed order dated 17.01.2019 which has dealt with all the contentions raised by learned counsels before this Court together with the fact that since he has been granted bail for the last three years, there are no complaint regarding intimidation or any other complaint filed by the complainant against present respondent no. 2, no ground for grant of relief sought for from this Court is made out.

7. Thus, this Court is not inclined to interfere with the order dated 17.01.2019 vide which the respondent no.2 was granted bail in the case FIR bearing no. 349/2018 by learned ASJ (South) Saket District Court, New Delhi.

8. Accordingly, the present petition stands dismissed.

9. The order be uploaded on the website forthwith.

SWARANA KANTA SHARMA, J FEBRUARY 1, 2023/kss